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TENTATIVE

RULING

DEPARTMENT

207

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MOTION

Motion to Quash Defendant Beverly Hills Hotel Corporation's
Subpoenas for Plaintiff's Medical Records

MOVING PARTY

Plaintiff Terrence Morgan

OPPOSING PARTY

none

MOTION

This case arises from a slip and fall.

On July 16, 2025, Plaintiff Terrance Morgan ("Plaintiff") filed suit against Defendants Beverly Hills Hotel Corporation ("BHHC"); Sajahtera, Inc. ("Sajahtera") and Beverly Hills Hotel ("BHH") (together, "Defendants") alleging two causes of action for (1) general negligence and (2) premises liability.

Plaintiff now moves to quash a subpoena for business records propounded by BHHC on various health providers seeking Plaintiff's medical records. The motion is unopposed.

ANALYSIS

I.

MOTION TO QUASH

If a subpoena requires the production of documents, the court may quash the subpoena entirely or modify it. (Code Civ. Proc., § 1987.1, subd.

(a).) In ruling on a motion to quash, "the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

Current discovery standards

hold that, "any party may obtain discovery regarding any matter, not privileged,[1]

that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Board of Registered Nursing v. Superior Court (2021) 59 Cal.App.5th 1011, 1039 (hereafter Board of Nursing).) "To meet this [test], a party seeking to compel [the] production of records . . . must articulate specific facts justifying the discovery sought; it may not rely on mere generalities." (Ibid.; see Johnson v. Superior Court (1968) 258 Cal.App.2d 829, 837 [finding that a subpoena was

“insufficient” to compel production because it was “based wholly on the [party’s] alleged information and belief without any statement of supporting facts”).) However, “[e]ven if information is otherwise discoverable, it may be protected by a constitutional or statutory privilege[,] [including] the right to privacy” (Board of Nursing, *supra*, 59 Cal.App.5th at p. 1039.)

“The state Constitution expressly grants Californians a right to privacy. Protection of informational privacy is the provision’s central concern. . . . The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.[2] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 552 [cleaned up].)

“Legally recognized privacy interests [include] interests in precluding the dissemination or misuse of sensitive and confidential information (‘informational privacy’)” (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 35.) “A particular class of information is [sensitive or confidential] when well-established social norms recognize the need to maximize individual control over its dissemination and use to prevent unjustified embarrassment or indignity.” (Ibid.)

It is “well-settled” that “patients have a right to privacy with respect to information contained in . . . [their] medical records.” (Grafilo v. Wolfsohn (2019) 33 Cal.App.5th 1024, 1034.) Indeed, a patient’s right to privacy “is protected by case law as well as state and federal statutes and regulations.” (County of Los Angeles v. Superior Court (2021) 65 Cal.App.5th 621, 641 (hereafter County of Los Angeles).) Additionally,

"[t]he privacy interest in psychiatric records is particularly strong, and in some respects, entitled to more robust protection than other types of medical records." (Grafilo v. Soorani (2019) 41 Cal.App.5th 497, 507.)

"As one court explained in discussing the examination of medical records vis-à-vis the right to privacy: the information that may be recorded in a doctor's files is broad-ranging. The chronology of ailments and treatment is potentially sensitive. Patients may disclose highly personal details of lifestyle and information concerning sources of stress and anxiety. These are matters of great sensitivity going to the core of the concerns for the privacy of information about an individual." (County of Los Angeles, supra, 65 Cal.App.5th at pp. 641–642 [cleaned up].)

In Britt v. Superior Court (1978) 20 Cal.3d 844, 859, it was recognized that "the filing of a lawsuit may implicitly bring about a partial waiver of one's constitutional right of . . . privacy." However, the California Supreme Court held that "the scope of such 'waiver' must be narrowly rather than expansively construed." (Ibid.) In other words, "while [a plaintiff] may not withhold information which relates to any physical or mental condition which they have put in issue by bringing this lawsuit, they are entitled to retain the confidentiality of all unrelated medical or psychotherapeutic treatment they may have undergone in the past." (Ibid.) Therefore, it follows that a patient cannot reasonably expect certain matters to remain private if they are related to the specific issues that the patient has himself brought before a court. On the other hand, it is objectively reasonable to expect health care records that are unrelated to a current legal dispute to remain private.

Here, on or about April 22, 2026, BHHC served subpoenas to Elite Medical Clinic; Savas Health Desert Clinic Palm Springs; The Chiropractor Center; Adam Zweig, M.D.; Douglas Roger, M.D.; Radnet (Billing Dept.); Radnet Management Inc.; California Sports & Spine Center-Santa Ana; California Sports & Spine Center- Santa Ana – Medical Records; and California Sports & Spine Center- Billing seeking "all documents and records" for Plaintiff from January 1, 2016 to present.

On May 13, 2026, Plaintiff's counsel

objected on the grounds that the subpoenas should be limited to Plaintiff's neck, bilateral shoulders, and lower back, as those are the only body parts at issue in this case, and that the request should be limited to a five-year period preceding the incident.

Following meet and confer efforts, the parties agreed to limit the time frame to a seven-year period preceding the accident, but the parties did not come to an agreement regarding the scope of body parts at issue.

Because a plaintiff waives their right to privacy only as to the specific injuries or conditions for which she seeks redress, the Court agrees that the scope of the subpoenas should be limited to only those body parts at issue in this case, namely Plaintiff's neck, bilateral shoulders, and lower back, and no party has opposed the motion to demonstrate otherwise.

II.

REQUEST FOR MONETARY SANCTIONS

In ruling on a motion to quash, "the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).) "Unreasonable or oppressive demands" include "unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Plaintiff seeks monetary sanctions against BHHC and/or its attorneys of record, Lewis Brisbois Bisgaard & Smith, in the amount of \$6,110 for attorneys' fees and costs incurred in bringing the instant motion, comprised of 11 hours of attorney time at \$550 per hour plus the \$60 filing fee.

The Court notes that BHHC did not oppose the motion. As such, there is no opposition made in bad faith or without substantial

justification.

However,
because the Court ultimately agrees with Plaintiff that the subpoenas should be limited to the body parts at issue, the subpoenas as drafted constitute an unreasonable violation of Plaintiff's right to privacy. Further, because the motion was necessitated by BHHC's counsel's outright failure to respond to Plaintiff's counsel's request to limit the scope of the subpoenas at issue to the relevant body parts, the Court finds that monetary sanctions are appropriate against BHHC's counsel of record.

Notwithstanding,
the Court finds the amounts Plaintiff seeks to be excessive and awards monetary sanctions in the amount of \$1,710, representing 3 hours of attorney time plus the \$60 filing fee.

Further,
there is no evidence in the record to demonstrate that BHHC, as opposed to its counsel, unreasonably sought the additional records or that BHHC thwarted its counsel from responding to Plaintiff's counsel.
As such, the record does not support issuing monetary sanctions against BHHC.

CONCLUSION AND ORDERS

The Court grants in part and
denies in part Plaintiff's unopposed motion to quash and quashes the above-referenced subpoenas.

Further, the Court awards Plaintiff
monetary sanctions against BHHC's counsel of record, Jay B. Lake of Lewis Brisbois Bisgaard & Smith LLP in the amount of \$1,710.00, payable to Plaintiff, by and through Plaintiff's counsel, within thirty (30) days of notice of this order.

Further, the Court will enter
the proposed Order lodged on June 1, 2026 in conformity with the ruling.

Plaintiff shall provide notice
of the Court's Order/ ruling and file the notice with a proof of service

forthwith.

DATED:

June 29, 2026 ____/s/_____

Michael E. Whitaker

Judge
of the Superior Court

[1] “A patient has a statutory privilege to refuse to disclose, and to prevent another from disclosing, any confidential communication between the patient and a physician, or between the patient and a psychotherapist, absent waiver or some statutory exception to the privilege. These privileges apply to discovery as well as to trial, and they preclude disclosure to the court as well as to the parties.” (Simek v. Superior Court (1981) 117 Cal.App.3d 169, 173 [cleaned up].) Specifically, the Evidence Code holds that “[t]he patient, whether or not a party, has a privilege to refuse to disclose, and to prevent another from disclosing, a confidential communication between patient and physician” (Evid. Code, § 994; see also Evid. Code, § 1014 [“the patient, whether or not a party, has a privilege to refuse to disclose, and to prevent another from disclosing, a confidential communication between patient and psychotherapist”].) However, the Evidence Code provides that “there is no privilege under this article as to any communication relevant to an issue concerning the condition of the patient if such issue has been tendered by” the patient or a patient-related party. (See Evid. Code, § 996; see also Evid. Code, § 1016 [regarding a patient’s emotional or mental condition].)

[2] “This initial inquiry is necessary to permit courts to weed out claims that involve so insignificant or de minimis an intrusion on constitutionally protected privacy interests as not even to require an explanation or justification by the defendant.” (Lewis v. Superior Court (2017) 3 Cal.5th 561, 571 [cleaned up].)